

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN MEXICO

Complete Community Opposition How-To

A practical guide for communities facing destructive development projects in Mexico, grounded in the constitutional and environmental-impact system and documented campaigns

This guide uses the Mexican legal terms you will actually encounter (amparo, Manifestación de Impacto Ambiental, interés legítimo, consulta previa, and so on), each explained in plain language where it first comes up. It describes the national framework; states and municipalities have their own rules and authorities, so check locally.

A note on terms. Important terms are shown in **bold** the first time they appear, with a plain-language explanation right where they come up.

TABLE OF CONTENTS

1. **INTRODUCTION & FRAMEWORK** — Why this matters, how this works, what to realistically expect
 2. **HOW THE SYSTEM WORKS** — Who decides, how a decision is made, and the words you'll need
 3. **QUICK REFERENCE: SUCCESS RATES** — Effectiveness by step and combined, with real-world grounding
 4. **STEP 1: TARGET IDENTIFICATION** — What you're fighting, who controls it, when the decision is final
 5. **STEP 2: DOCUMENTATION** — How to prove harm (three documentation layers)
 6. **WHAT TO GATHER, AND WHERE TO FIND IT** — The records that win cases, and how to get them
 7. **STEP 3: BUILDING LOCAL OPPOSITION** — How to organize (Foundation → Public Launch → Coalition → Escalation)
 8. **STEP 4: LEGAL CHALLENGES** — Consultation, the amparo, and administrative challenge
 9. **TURNING YOUR EVIDENCE INTO ARGUMENTS** — Matching each fact to the ground that wins
 10. **STEP 5: MEDIA STRATEGY** — How to generate coverage
 11. **EMAILS & LETTERS** — Ready-to-use messages communities can copy and send
 12. **IF YOU HAVE LITTLE TIME OR FEW RESOURCES** — The rapid-fire version
 13. **WHEN THE SYSTEM IS TILTED** — When opposition faces systemic barriers
 14. **WHEN IT'S ACTUAL CORRUPTION — AND WHO IS CAPTURED** — Reading capture actor by actor
 15. **INTEGRATION & TIMELINE** — How all five steps work together over a 12-month campaign
 16. **FINAL ASSESSMENT** — Realistic outcomes, when to continue, when to reassess
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INTRODUCTION & FRAMEWORK

Why This Matters

Community action directly determines project outcomes in Mexico. Projects that clear every political and commercial hurdle still fall when opposition is organised, documented, and legally sharp. In 2018, six Maya children of **Homún**, in Yucatán, filed an **amparo** — a constitutional-protection suit — and a judge ordered a mega pig farm halted; the Supreme Court confirmed the suspension in 2021, after the community documented the threat to the **cenotes** their water comes from and the consultation they were never given. Across the country, communities using the **amparo**, the **suspension**, and their right to **consultation** have forced projects to be refused, halted, redesigned, or abandoned. These outcomes were not inevitable; communities made them happen.

But most communities don't know HOW to make opposition effective. They attend one public meeting, then give up. They assume "the ministry will refuse it" without building public pressure, filing objections, or going to court. They generate coverage without a strategy. They organise people and then lose them to burnout after four months.

This guide shows what actually works — in the Mexican system.

The Strategic Framework

Successful opposition campaigns follow the same basic pattern:

```
STEP 1: TARGET IDENTIFICATION
↓
STEP 2: DOCUMENTATION (proof of harm)
↓
STEP 3: LOCAL OPPOSITION BUILD (organised community)
↓
STEP 4: LEGAL CHALLENGES (amparo / suspension)
↓
STEP 5: MEDIA STRATEGY (public visibility)

These operate SIMULTANEOUSLY (not sequentially)
Each step amplifies the others
Multi-tactic pressure compounds toward victory
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Why the legal step matters so much here: Mexico gives communities a distinctive and powerful set of levers. The **amparo** — one of Mexico's signature contributions to constitutional law — lets a person or community ask a federal court to protect a right, and to grant a **suspensión** (a precautionary injunction) that can **halt a project while the case runs**. Standing is broad: under the **interés legítimo** (legitimate interest) doctrine, the courts have held that a person who benefits from an ecosystem's environmental services can sue **without having to prove the environmental damage first**. Courts apply the **precautionary principle** and the principle of **non-regression**. Where a project affects an **Indigenous people**, their **prior consultation (consulta previa)** is required. And an **environmental-impact authorization** rests on a study — the **MIA** — whose defects are a direct route to court. No Mexican campaign should be planned without understanding these. (One honest caveat: a 2024 judicial reform **narrowed** courts' power to suspend general rules, so get current advice — the amparo remains central, but the ground has shifted.)

Critical Caveat: A Tilted System Can Make Opposition Harder (But Doesn't Make It Impossible)

Before you invest time, money, and emotional energy, understand this:

First, a definition. This guide calls it a **system tilted toward approval** (sometimes called *institutional bias*). It does not mean anything illegal. It means the bodies that decide on a project lean toward approving it — because the government is pushing investment and infrastructure, because the developer's own study drives the assessment, or because authorizations are rarely refused.

When these factors are present, opposition becomes harder. It does not become impossible. It becomes slower and more expensive and has a lower chance of stopping a project outright — but it still routinely wins suspensions, conditions, redesigns, and delay. Where there is genuine misconduct — bribery, an undeclared interest, the offences under the anti-corruption law — that is a different and more serious problem, covered in Section 11.

This is covered in Sections 10 and 11. Read them before committing resources.

HOW THE SYSTEM WORKS: WHO DECIDES, AND HOW

If you've never dealt with how projects get approved, read this section first. It explains, in plain terms, who holds power over a development in Mexico, how a decision gets made, why the money so often points toward "yes," and the handful of words you'll need. Every term is defined here on first use. The rest of the guide assumes you know this map.

The levels of government — and what each one controls

Mexico is a federal republic with three levels of government.

- **Federal government** — the **Ministry of the Environment (SEMARNAT)** evaluates the **environmental-impact statement (MIA)** and issues the **environmental-impact authorization** for federally-listed works; the **Federal Environmental Protection Agency (PROFEPA)** enforces environmental law; the national water commission (**CONAGUA**) grants water concessions; and the sector ministries handle energy, mining, and infrastructure.
- **State government** — the state environment secretariat evaluates the **MIA** for state-competence projects and grants state and land-use permits (in Homún, the Yucatán state environment authority granted the pig-farm permits).
- **Municipal government** — the **municipio** controls local land use, building and operating licences, and the urban-development plan.

So which body decides your project? - A mine, power plant, dam, tourism megaproject, industrial farm, or major road → an **environmental-impact authorization** based on a **MIA**, from **SEMARNAT** (federal) or the state environment authority depending on the project; plus a **land-use-change (cambio de uso de suelo)** authorization for forest land, a

CONAGUA water concession, and municipal licences. - Anything affecting an **Indigenous people** → their **prior consultation (consulta previa)**, under the Constitution and **ILO Convention 169**. - Anything in a **protected natural area** or a wetland → the additional clearance and the stricter rules that apply.

The expert and enforcement bodies

- **SEMARNAT (and its impact-assessment office) and the state environment authorities** — evaluate the **MIA** and decide the authorization.
- **PROFEPA** — inspects and enforces, and can order corrective measures, closures, and sanctions.
- **The courts, the audit office, the anti-corruption prosecutor, and the transparency authority** — the accountability bodies (see the overseers, below, and Section 11).

How a decision is actually made — the authorization journey

For a project that may affect the environment, the developer must obtain an **environmental-impact authorization** based on a **MIA** under the framework environmental law (**LGEEPA**). The process runs roughly:

1. **Submission** — the developer files the **MIA** with SEMARNAT or the state authority.
2. **Public consultation** — any person may ask that the MIA be put to **public consultation (consulta pública)**, and a **public information meeting (reunión pública)** may be held, where the community can raise objections **on the record**.
3. **Evaluation** — the authority evaluates the impacts, alternatives, and mitigation, and may seek expert opinions.
4. **Decision** — the authority **authorizes, conditionally authorizes, or denies** the project.

Where an **Indigenous people** is affected, a genuine **prior consultation** must take place. A **defective or misleading MIA, a consultation that was skipped or stage-managed, or an authorization granted without a required study** are among the strongest grounds to stop or delay a project — and the direct route to the **amparo**.

The rulebook — the laws that decide the outcome

- **The Constitution** — the right of every person to a **healthy environment (medio ambiente sano)** for their development and well-being (Article 4); the rights of **Indigenous peoples**, including consultation (Article 2); and the state's role over natural resources (Article 27).
- **The LGEEPA (General Law of Ecological Balance and Environmental Protection)** — the framework: the **MIA** and the environmental-impact authorization, and (Article 180) the **interés legítimo** to challenge them.
- **The Ley de Amparo** — the constitutional-protection suit and the **suspension**.
- **The Federal Environmental Liability Law** — claims for **environmental damage (daño ambiental)**.
- **ILO Convention 169 and the Escazú Agreement** — Indigenous consultation, and environmental access rights.

Follow the money — why the system often leans toward "yes"

- **States and municipalities** compete hard for investment and the jobs a project brings, so there is often intense official pressure to approve.
- **The federal government** promotes energy, tourism, and infrastructure, and designates some as **priority projects (obras prioritarias)** with strong backing.
- **Developers** are often large companies, and — importantly — the **MIA is prepared by the developer's own consultant**, so it tends to read in the project's favour.
- Refusals are relatively rare; most projects that reach a decision are authorized, with conditions.

None of this makes a decision inevitable. It explains why a decision rarely tips your way on its own — it takes organised, evidenced pressure.

The overseers — who watches the decision-makers

- **The federal courts (the Judicial Branch of the Federation)** — hear the **amparo**, grant the **suspension**, and apply the **precautionary** and **non-regression** principles; the administrative-justice court (**TFJA**) hears administrative challenges.
- **PROFEPA** — enforces, and can be pushed to act on a citizen complaint (**denuncia popular**).
- **The Federal Audit Office (ASF)**, the **anti-corruption prosecutor**, and the **Secretariat of Anti-Corruption and Good Governance** — the integrity bodies (see Section 11).
- **The transparency authority** — which guarantees the right to public information (its structure changed in 2025 — see

QUICK REFERENCE: SUCCESS RATES BY STEP & COMBINATION

These ranges describe the general effectiveness of each tactic drawn from documented opposition campaigns. They are patterns, not guarantees. In Mexico, the variable most likely to push a campaign above these ranges is a well-founded challenge on a real defect — a misleading **MIA**, a missing **prior consultation**, or a threat to a water system or protected area — carried through an **amparo** with a **suspension** (Step 4).

Individual Step Success Rates

Step	Success Rate	Timeline	Cost (MXN)	What "Success" Means
Documentation Only	5-10%	3-4 months	MX\$150,000	Project slowed, public awareness only
Opposition Only	15-20%	6-12 months	MX\$450,000	Public pressure, minor modifications
Legal Only	20-30%	12-24 months	MX\$0-600,000	Strong with a suspension if the defect is real
Media Only	10-15%	3-6 months	MX\$150,000	Public knows, but no action
Docs + Opposition	25-35%	12 months	MX\$550,000	Slowed, some modifications
Docs + Legal	30-40%	12-18 months	MX\$700,000	Stronger legal arguments
Opposition + Legal	35-45%	12-18 months	MX\$900,000	Political pressure strengthens the case
Opposition + Media	30-40%	9-12 months	MX\$550,000	Visibility creates political pressure
All 5 Steps Combined	60-75%	12-24 months	MX\$1,000,000	Authorization annulled/refused/modified or project halted

Key insight: All five steps together = 3-4x more effective than any single step.

A note on legal cost: an amparo can be brought at modest cost, and public-interest environmental lawyers (such as CEMDA) and legal clinics take these cases, often at no charge — so the "Legal" figures are not a hard floor. The main cost is expert evidence, not court fees.

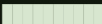
Effectiveness Visualization

SUCCESS PROBABILITY (Authorization Annulled/Refused/Modified/Project Halted)

CLEAN DECISION SCENARIO:

All 5 Steps Combined:  65-75%
Same chance as: a coin coming up heads twice (75%)

4 Steps Combined:  55-65%
Same chance as: a forecast of 60% rain being correct

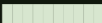
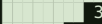
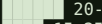
3 Steps Combined:  45-55%
Same chance as: a single coin flip (50%)

2 Steps Combined:  30-40%
Same chance as: drawing a face card from a deck

Single Step:  5-20%
Same chance as: rolling a specific number on one die

WITH MODERATE TILT FACTORS:

(Strong pro-investment push, or a developer-funded MIA)

All 5 Steps Combined:  40-45%
4 Steps Combined:  30-40%
3 Steps Combined:  20-30%
2 Steps Combined:  15-25%
Single Step:  3-12%

WITH SEVERE TILT FACTORS:

(A federal priority project, developer-only studies, heavy political backing)

All 5 Steps Combined:  25-30%
4 Steps Combined:  18-24%
3 Steps Combined:  12-18%
2 Steps Combined:  8-15%
Single Step:  2-8%

One important point: a single clear legal defect — most powerfully a missing **prior consultation**, a misleading **MIA**, or a threat to a water system — can lead a federal court to grant a **suspension** and halt a project even where the politics favour it, because it is applying a constitutional standard the authority cannot ignore. (A defect that is later "cured" can let the project resume, so an early win may need defending — as the Homún community has found.)

Step Importance Ranking (When All Combined)

1. **OPPOSITION BUILDING** (Step 3) 25%
Why: creates political pressure, visible to decision-makers, enables other steps
2. **DOCUMENTATION** (Step 2) 22%
Why: provides ammunition for the amparo, courts, and media; grounds opposition in facts
3. **MEDIA STRATEGY** (Step 5) 20%
Why: makes opposition/legal/documentation visible, creates political cost
4. **LEGAL CHALLENGES** (Step 4) 18%
Why: the amparo and suspension can halt a project — and hold the MIA and consultation levers
5. **TARGET ID** (Step 1) 15%
Why: foundation — if wrong, everything fails

Real insight: a large, organised, visible community that has also put well-argued objections on the record in the **public consultation** and, as an Indigenous people, insisted on genuine **prior consultation**, is far more powerful than perfect documentation or a brilliant legal argument standing alone.

What Mexican Campaigns Actually Show

A few patterns recur. **Organised opposition and a documented file are the base**, and Mexico's distinctive lever is the **amparo** and its **suspension**, which can halt a project while the courts examine it. **The environmental-impact process (MIA)** supplies the procedural foothold, and where Indigenous peoples are affected, **consultation rights** add a powerful further front. **A durable coalition and sustained media** turn these into political cost. **The ceiling depends on the project's backing** — a favoured project is usually delayed or conditioned, while a defective MIA or a violated consultation is genuinely vulnerable, and the amparo's suspension can buy decisive time. The through-line: **build the file, file the amparo, assert consultation, and hold the coalition and coverage together**.

STEP 1: TARGET IDENTIFICATION

Time to complete: Weeks 1-4 **Cost:** MX\$0 **Outcome:** A clear picture of what you're fighting, who decides, and when the decision is final

Core Questions You Must Answer

Before you organise a single person, answer these precisely.

Question 1: What Exactly Will Be Destroyed?

Not: "Environmental damage" But: "The farm sits over the aquifer-recharge zone that feeds the **cenotes** [number] families drink from, and its waste threatens to contaminate them."

Not: "Pollution" But: "The plant will emit an estimated [X] of fine particles over the nearest homes of 1,500 people, in an area already exceeding the air-quality standard."

Not: "Community harm" But: "The project crosses the territory of the [Indigenous people] without the **consultation** the Constitution requires, and cuts [number] families' access to their land."

Why this matters: specific harms are easier to document, litigate, and organise around. Vague opposition dies; specific opposition survives. Harm to an **Indigenous territory**, a **water system**, a protected natural area, or a wetland also opens a **specific legal front** (prior consultation; the water, forest, or protected-area rules; the amparo).

Question 2: Who Decides?

You cannot pressure an abstraction. Identify the decision-maker precisely — it is usually one of these:

- **SEMARNAT** (federal) — for the **MIA** and environmental-impact authorization of federal works, and land-use change on forest land.
- **The state environment authority** — for the **MIA** of state-competence projects and state/land-use permits.
- **The municipio** — for local licences and land use.
- **CONAGUA** — for the water concession.

Write it down concretely: "The state environment authority will decide the environmental-impact authorization after the MIA is reviewed. The project affects an Indigenous community, so a prior consultation is required, and it needs a CONAGUA water concession."

Question 3: What Specific Action Stops It?

Not: "Stop the project" But: "Persuade the authority to deny the authorization, or win a suspension in an amparo" — or, if refusal is unrealistic, "obtain strict conditions, real remediation, and a redesign."

Not: "Protect the environment" But: "Show the **MIA** is misleading, the **consultation** was skipped, or a required study is missing, and file an **amparo** seeking a **suspension**."

Why this matters: you can demand something achievable. Vague demands are easy to ignore; specific ones create measurable pressure and, if the process is unlawful, become the ground for a court to act.

Question 4: When Is the Decision Final?

Timeline tells you how much time you have. Map every date: when the **MIA** is filed, the window to request a **public consultation**, the public meeting, and the authorization. Don't wait: request the consultation and object during it, and be ready to file an **amparo** — an amparo has a **short deadline** (generally within 15 working days of learning of the act), so move quickly, and seek a **suspension** at the same time.

Question 5: Are There Documented Financial or Policy Pressures?

This is the tilted-system assessment question. Know it BEFORE you organise: - Is the project a federal **priority project (obra prioritaria)** or a big state investment, hardening political backing? - Is the **MIA** prepared and paid for by the developer's own consultant only? - Does the state or municipio depend on the project for jobs and revenue? - Is the developer a large company with deep resources for studies, lawyers, and appeals? - Has the project begun works before the authorization — presenting a *fait accompli*?

Why this matters: if strong "priority project" backing or developer-controlled studies are present, opposition must overcome different barriers (Section 10). It doesn't mean opposition can't work — it means realistic expectations and, often, a focus on the **MIA**, the **consultation**, and the missing-study defects, on conditions, and on the **amparo**, rather than a straight political refusal.

STEP 2: DOCUMENTATION — HOW TO BUILD AN UNASSAILABLE CASE

Time to complete: Months 1-4 **Cost:** MX\$150,000-250,000 (MXN) **Outcome:** Three polished reports (30+ pages total) showing specific, quantified harms

Success Rate (Documentation Alone): 5-10% **Success Rate (Documentation + Opposition):** 25-35% **Success Rate (Documentation + Opposition + Legal + Media):** 60-75%

The Three Documentation Layers

Documentation turns vague opposition ("This is bad") into undeniable evidence ("This specific harm will occur to these specific people/places at these specific costs"). Success comes from three layers working together.

LAYER 1: BASELINE CONDITIONS DOCUMENTATION

What it is: documentation of existing conditions BEFORE the project begins — including who lives on and uses the land, and how.

Why it matters: developers claim "the land is idle" or "already degraded." Baseline documentation proves what — and who — was there, and it cannot be reconstructed later.

Documented case — the Maya community of Homún and the mega pig farm

A company obtained permits to build an industrial farm of some 49,000 pigs at **Homún**, a Maya town in Yucatán that sits in the **Ring of Cenotes** — a reserve of hundreds of sinkholes over the aquifer that supplies the region's water. Its backers treated it as an ordinary agribusiness. The community made that impossible. Organised as the collective **Kanan Ts'ono'ot (Guardians of the Cenotes)**, and accompanied by a human-rights organisation, they documented two things: that the company's **environmental-impact study was full of irregularities**, and that the farm threatened to contaminate the **cenotes** and the aquifer the town drinks from — and that they, an Indigenous people, had never been **consulted**.

It changed the outcome. In 2018, **six Maya children of Homún filed an amparo**, and a federal judge granted a **suspension** that halted the farm; in 2021, the **Supreme Court confirmed the definitive suspension**, keeping the farm closed pending the merits. The community's documented account — of the flawed study, the threat to the water, and the missing consultation — was the thing the courts acted on. (Honesty matters here: the company has kept trying to overturn the suspension, and the case continues — a reminder that a legal victory often has to be defended.)

Why it matters for you: the Homún community's documentation — of the study's defects and the threat to the cenotes — was decisive. Documenting existing conditions, including who lives there, the water systems they depend on, and what the study got wrong, is the foundation of everything that follows.

Building your own baseline (typical process). Document existing conditions before the project starts, because a developer will claim the land is "idle" and baseline cannot be reconstructed later. A workable approach: surveys across a season cycle of the project area plus reference sites; a species and habitat inventory with GPS locations, flagging anything protected that the developer's **MIA** omitted; a record of who occupies and uses the land — farming, fishing, gathering, sacred sites — and whether it is **Indigenous territory** (the basis of a **consultation** right); the **water systems** the community depends on (cenotes, aquifers, rivers, springs — as at Homún); proximity to any protected area or wetland; and water and air baselines (quality and seasonal variation). Typical cost is around MX\$150,000-200,000 for a technical consultant/ecologist, GPS, and testing — reducible with knowledgeable community members, university researchers, and naturalists. Dated, same-spot photographs and geo-referenced maps make it credible.

LAYER 2: IMPACT ANALYSIS

What it is: detailed analysis of what specific harms will occur, based on the project description plus your baseline.

Why it matters: it shows not just "something bad" but "specifically THIS BAD in THIS WAY" — and it maps directly onto what the **MIA** must properly assess.

Use the developer's own words and the assessment rules. Powerful, documentable weak points in Mexican assessments include: - **A misleading or incomplete MIA.** The **MIA** must genuinely assess the project's significant impacts, alternatives, and mitigation. A study that omits or understates impacts — the water system, as at Homún — is a strong ground. - **A defective public consultation.** The **public consultation** must be genuinely available and its objections addressed. A skipped or stage-managed process is a strong, specific defect. - **A missing prior consultation.** For an **Indigenous people**, a genuine **prior consultation** is required — its absence is a strong ground, and was central at Homún.

Convert each of the developer's admissions ("temporary disturbance," "limited clearing") into a quantified prediction against your baseline.

Outcome (illustrative): a **MIA** or **consultation** found defective can lead a court to grant a **suspension** and annul the authorization — halting the project, or adding months or years.

LAYER 3: HEALTH & ECONOMIC IMPACT DOCUMENTATION

What it is: quantification of human-health and economic costs to the community.

Why it matters: decision-makers and the public respond to human cost. "X hectares affected" matters less than "an estimated 45 additional respiratory cases a year, and MX\$X of health-system cost" — or "the farming, fishing, and cenote ecotourism that sustain 200 families destroyed."

Method: use recognised air-quality or water modelling and the public-health literature to translate emissions or

contamination into health and livelihood outcomes, then attach costs — additional respiratory and gastrointestinal cases, lost farming, fishing, and tourism income, and total annual and lifetime cost for the affected population.

Outcome (illustrative): an independent health-and-livelihood analysis can move a municipio or state, feed the amparo, and force conditions the original design lacked.

How to Structure Your Documentation

Phase 1: Baseline Conditions (Months 1-2)

Engage a technical consultant or ecologist (or use knowledgeable community members, university researchers, and naturalists); document conditions AND human occupation, use, Indigenous status, water systems, and sacred sites.

Deliverable: a 20-30 page baseline report with species/habitat inventory, a record of use and rights, water/air data, dated photographs, and geo-referenced maps.

Phase 2: Impact Analysis (Months 2-3)

Obtain the **MIA** and the authorization file (request them; the transparency system can help); identify specific impacts; test the study against the rules (completeness, public consultation, prior consultation, water, protected areas). **Deliverable:** a 20-30 page impact analysis with quantified predicted impacts, comparison to baseline, and the developer's own admissions quoted back.

Phase 3: Health/Economic Analysis (Months 3-4)

Identify affected populations; estimate health and livelihood impacts and costs. **Deliverable:** a 15-20 page report written for the public and press.

Common Documentation Pitfalls (What Fails)

- **Waiting for perfect data.** Documented data beats perfect data that arrives after the authorization.
- **Only environmental data.** Add health, livelihood, and human-occupation impacts — the arguments that move decision-makers, the courts, and the public.
- **No independent check.** A report the authority can dismiss as "activist material" is far stronger after an independent expert or a university reviews it.
- **Ignoring the developer's own admissions.** Their **MIA** is your best source; quote it against itself. Use the transparency system to get it and the file.

Documentation Budget Breakdown (MXN)

Item	Cost	Notes
Technical consultant / ecologist (baseline + species ID)	MX\$120,000	Protected-species and habitat survey
GPS / survey equipment	MX\$12,000	Mapping/documentation
Water/air testing	MX\$25,000	Sampling across seasons
Independent / university expert review	MX\$20,000	Credibility
Printing/information-request/translation	MX\$8,000	Local-language copies for decision-makers
TOTAL	MX\$185,000	Reducible with university partners and community members

WHAT TO GATHER, AND WHERE TO FIND IT

Most of what wins a case already exists in public records. The job is knowing which record holds which fact, and pulling it before you need it. This section is the shopping list; it also points you to the sources this map links.

Start at the deciding body's register and the municipio's own website. In Mexico the official documents for a project — the Manifestación de Impacto Ambiental (MIA), the public-consultation notices, the environmental authorization

(autorización de impacto ambiental) and its conditions — are posted by the body running the review: SEMARNAT (federal) or the state environmental authority for the MIA, the municipio for land use and construction licences, and CONAGUA for water. The official documents for most local projects live on the municipio's own website (planning applications, notices, agendas), so check those pages weekly. The legal clock often runs from what is posted there.

The project file and the Manifestación de Impacto Ambiental (MIA). Get the developer's Manifestación de Impacto Ambiental (MIA) as soon as it is posted — it is public, and it is where the developer admits harm in its own words.

Baseline environmental data. Federal and state environmental data; CONABIO biodiversity and protected-area records; and the developer's own MIA baseline studies.

Ownership and money. Company ownership from the Registro Público de Comercio; land from the Registro Público de la Propiedad and the Registro Agrario Nacional (for ejido land); and officials' asset declarations.

Case law and precedent. Federal court decisions are published by the Poder Judicial de la Federación; amparo rulings shape environmental practice.

How to force a document open. A request under the transparency law (**LGTAIP**), via the Plataforma Nacional de Transparencia, compels disclosure of records a public body holds. Use the request wording in Section 8E.

Free and low-cost help. Environmental and human-rights NGOs (e.g. CEMDA) litigate and advise; the amparo is the central constitutional tool.

Tie it to the map. The dots and layers here are your starting index — a mapped project points you to the deciding authority, and the local-ally entries point you to the organisations and legal help already working nearby. Pull that thread first, then follow it into the registers above.

STEP 3: BUILDING LOCAL OPPOSITION — HOW TO ORGANISE COMMUNITIES THAT HOLD

Time to complete: Months 2-6 (foundation), 6-12 (sustained) **Cost:** ~MX\$450,000 (MXN) for a full year **Outcome:** 50-100 core people, 5-10 organisations, sustained organisation

Success Rate (Opposition Alone): 15-20% **Success Rate (Opposition + Documentation + Legal + Media):** 60-75%

Critical Insight About Organising

Most opposition campaigns fail not because they can't build opposition, but because opposition burns out after 4-8 months. You need structures that prevent it.

PHASE 1: FOUNDATION (Months 1-2)

Goal: a core group of 15-20 motivated people and a clear picture of their concerns.

Step 1a: One-to-One Conversations

People don't join movements from pamphlets; they join from relationships. Identify the 15-20 people most affected or interested. **Talk to** each in person for an hour. Ask: "What's your biggest concern about this project?" Listen — don't pitch. Ask what they'd be willing to do. Each person has a different concern (land, water, farming, health, a sacred site, a way of life). Opposition organised around each shared concern is stronger than one generic message.

Step 1b: Affinity Groups by Concern

Organise small groups (3-8 people) around a shared concern, not around "opposition": - **Land/livelihood group** — farming, fishing, ecotourism, displacement and compensation - **Water group** — the cenotes, aquifer, rivers, springs, contamination - **Health group** — air quality, dust, water-borne disease - **Rights group** — **Indigenous territory and consultation**, sacred sites Each group meets regularly and works out how opposition serves *their* interest, coordinating while keeping its own framing.

Step 1c: Use the Community Assembly and the *Ejido*, and Register a Collective

Two vehicles matter. First, Mexican communities have their own strong structures — the **community assembly (asamblea)**, and, on collectively-held land, the **ejido or comunidad agraria** and its assembly, whose decisions carry legal weight over that land — and, for an Indigenous people, the right to **consultation**; a clear, recorded community decision against the project is one of the strongest things you can produce. Second, a **registered civil association (asociación civil, A.C.)** can speak for the community, receive donations, and file an **amparo**; partner with established organisations (such as **CEMDA**) and a legal clinic early.

PHASE 2: PUBLIC LAUNCH (Months 2-3)

Goal: announce opposition to the public, the media, and decision-makers.

Step 2a: Public Meeting (community assembly)

Hold a community assembly where people set out their concerns to themselves, to the municipal and *ejido* authorities, and to press. A serious, informational meeting carries weight. Typical shape: welcome → project explanation → community concerns (each person a few minutes) → expert Q&A (an ecologist, a health voice, a lawyer) → next steps.

Step 2b: Opposition Materials (Factsheets)

One page, in the **local language** (Spanish and, where relevant, the Indigenous language). Decision-makers and neighbours won't read 30 pages; one page gets read. Structure: a headline stating the problem → quick quantified facts → the specific impact → **what you're asking for** → the evidence base → contact/resources. Print widely; distribute at markets, the municipal palace, churches, health centres; post a digital version. Cost: ~MX\$8,000.

Step 2c: The Public Consultation, the Consulta Previa, and the Community's Recorded Position (the decisive record)

Two things matter most here. First, **request the public consultation** on the MIA and turn people out to **speak and file written objections** (and demand a proper process, in the local language), each raising real grounds — a misleading **MIA**, harm to the cenotes or a protected area, ignored displacement. Second, secure the **records that carry weight**: a clear, formally recorded **community position** against the project, and — for an Indigenous people — an insistence that any **prior consultation** be genuine and, if the community objects, that its position is recorded. Together these build a record the courts take seriously. Cost: ~MX\$3,000.

Step 2d: Media Coverage at Launch

Release data + objections + the recorded community position = a story. (Full press-release example is in Section 9, 9G.) Contact reporters, then send the study. Expect 1-3 local stories.

PHASE 3: COALITION EXPANSION (Months 3-6)

Goal: grow from 20 core people to 50+ core plus 5-10 organisations.

Step 3a: Organisation Outreach

Approach environmental and rights organisations — the **Mexican Center for Environmental Law (CEMDA)**, other NGOs and networks, university law and science clinics, Indigenous-peoples' organisations, *ejido* unions, fishers' and farmers' groups, and religious bodies (which carry real weight in Mexican communities) — plus tourism operators and businesses that lose from the project. Research each; contact the right person; explain how opposition serves *their* aims; make a specific, tailored ask.

Tailored asks: - **CEMDA / a legal clinic**: "We need help preparing an amparo and a request for a suspension — can you assist?" - **A university group**: "Would your researchers assess the aquifer or health impacts independently?" - **An Indigenous organisation**: "Help us insist on a genuine prior consultation and record the community's position." - **Ejido / fishers / religious leaders**: "This takes the land and water we depend on — will you object and speak at the consultation?"

Step 3b: Coalition Agreements (Written)

A written agreement — who's in, how decisions are made, meeting frequency, the public message, who may speak for the coalition, conflict resolution, money, and an exit clause — prevents later conflict. Consensus is stronger but slower; voting

is faster but can fracture.

Step 3c: Coordinated Public Work

Assign leadership by strength: environmental analysis to the NGO/university; Indigenous territory and consultation to the community and an Indigenous organisation; livelihood to the *ejido*/fishers' groups; media to whoever has the contacts; the legal track to the law group and the registered association. Sequence activities so each builds momentum (coalition launch → data release → recorded community position → public consultation).

PHASE 4: SUSTAINED PRESSURE (Months 6-12)

Goal: maintain organised opposition across a 12+ month timeline.

Step 4a: Public Demonstrations (marches / plantones)

Regular, same time and place, growing attendance — outside the municipal palace, the state government, or at the site. Handle logistics: any required notice, marshals, accessibility, and a sound system for large gatherings. Momentum matters: "50 gather" becomes "gathering grows to 500."

Step 4b: Media Campaign (Ongoing)

Monthly rhythm: week 1 a release tied to an event/data; weeks 2-3 social media 3x/week; week 4 a reporter check-in. Rotate themes (community position recorded → expert finding → coalition growth → march → amparo filed).

Step 4c: Common Opposition Failure Points (How to Prevent)

Failure Point 1: Burnout (Months 4-8). Prevent it: regular (not constant) meetings; celebrate milestones; fund one part-time coordinator so volunteers don't carry logistics; schedule breaks; keep a public progress tracker. Campaigns that bring in a part-time coordinator when founders tire tend to last for years; those that don't often collapse around month six.

Failure Point 2: Coalition Conflict. Prevent it with a written agreement and decision process, a clear escalation path (discuss → mediator), an explicit exit clause, and rotating leadership. Respect that Indigenous communities and *ejidos* decide by their own processes — and be alert to developers trying to split a community by co-opting some leaders or staging a "consent"; keep decisions transparent and collective.

Failure Point 3: Competing Funding. Grants with conflicting conditions can pull groups off shared work. Coordinate grants up front and agree no group commits coalition resources without a coalition decision.

Failure Point 4: No Clear Wins. Name milestones as victories (community position recorded, 500 objections filed, a large march, the amparo admitted, a suspension granted) and publicise cumulative progress.

Opposition Building Budget: Year-Long Campaign (MXN)

Item	Cost
Factsheet printing (local language)	MX\$15,000
Website/phone/data (annual)	MX\$12,000
Meeting / venue costs	MX\$22,000
Outreach travel (often remote areas)	MX\$70,000
Objection/recording materials	MX\$4,000
Demonstration supplies (banners, sound)	MX\$30,000
Coalition meeting costs	MX\$22,000
Part-time coordinator honorarium (12 months)	MX\$210,000
Social-media / content (part-time, 3 months)	MX\$50,000
Fundraiser/event costs	MX\$20,000
TOTAL	MX\$455,000

Funding the campaign. Money typically comes from four places: individual donations (local collections and online

fundraisers, plus dedicated legal-cost appeals); grants from environmental and rights funders (long lead times — apply early); benefit events; and in-kind support from coalition organisations (expertise, meeting space, volunteer time). A registered civil association can receive donations and, where eligible, grants. Aim to raise half the budget by month 6 and the rest by month 12. **Reductions:** use a volunteer coordinator, or run a shorter 6-month campaign, to cut ~MX\$210,000; and organisations such as CEMDA and legal clinics often act at no charge.

STEP 4: LEGAL CHALLENGES — THE AMPARO, THE SUSPENSION, AND CONSENT

Time to complete: 3-24 months (depends on track) **Cost:** MX\$0-600,000 (MXN; an amparo can be brought at modest cost — the main cost is expert evidence) **Outcome:** an authorization annulled or refused, a project halted, conditions, or a project shelved

Representation impact: - Experienced environmental lawyers or a public-interest law group: 35-45% favourable-outcome likelihood - General or less specialised representation: 25-35% - Self-representation: 5-15% - **A key advantage:** the **amparo** is accessible, and public-interest environmental lawyers (such as **CEMDA**) and university legal clinics take these cases, often at no charge; standing is broad under the **interés legítimo** doctrine.

Success Rate (Legal Only): 20-30% **Success Rate (Legal + Opposition + Media):** 60-70%

Mexican legal strategy has three tracks, and the **amparo** with a **suspension** is the distinctive, decisive tool.

TRACK 1: PARTICIPATION AND THE PAPER TRAIL (the front door)

Most fights are shaped here, on the record, before the amparo is filed.

- **Request the public consultation and object.** Ask that the **MIA** be put to **public consultation**, and file written objections raising real **legal grounds** — a misleading MIA, harm to the water system or a protected area, ignored displacement, a consultation not held in the local language.
- **Record the community's position and, for an Indigenous people, insist on consultation.** A clear, formally recorded **community position**, and — for an **Indigenous people** — a genuine **prior consultation** (or a recorded objection to its absence), carry weight.
- **Use the transparency system.** Request the **MIA**, the authorization file, and the correspondence through the public-information system (the National Transparency Platform); escalate a refusal to the transparency authority. This turns a closed process into a documented one.
- **File a citizen complaint (denuncia popular) with PROFEPA** where there is a violation, to trigger inspection and enforcement.

Why this track matters: filing well — specific, on time, grounded in the law and the evidence — plus the information paper trail and the recorded community position, often does more than any amount of noise, and it builds the case you'll need for Tracks 2 and 3.

TRACK 2: THE MIA, CONSULTATION, AND CONSTITUTIONAL LEVERS (the strongest cards)

Several grounds make this powerful.

1. A misleading MIA or a missing required study. The **MIA** must genuinely assess the project's significant impacts and alternatives, and some works need studies (such as a land-use-change or risk study) before they can proceed. Where they are defective or missing — as at **Homún** — the authorization is vulnerable in an **amparo**.

2. A missing or defective prior consultation. For an **Indigenous people**, a genuine **prior consultation (consulta previa)** is required under the Constitution and ILO Convention 169; the courts have annulled authorizations granted without it. This is a strong, specific ground.

3. Broad standing and protective principles. Under the **interés legítimo** doctrine, the courts have held that a person who benefits from an ecosystem's environmental services can bring an amparo **without first proving the environmental damage** — the risk of damage is the merits question — and they apply the **precautionary principle**

and the principle of **non-regression** (a protection, once granted, should not be rolled back). These make it easier to get into court and to win.

The suspension — the halting lever. In an amparo, the court can grant a **suspensión** (a precautionary injunction) that **halts the project while the case runs** — the tool that stopped the Homún farm. (Honest caveat: a 2024 judicial reform **narrowed** the courts' power to suspend general rules, and a 2025 proposal sought to limit NGO standing — so get **current advice** on what a court can suspend today.)

TRACK 3: THE AMPARO, THE ADMINISTRATIVE COURT, AND COLLECTIVE ACTIONS

Match the tool to the goal: - **The amparo (juicio de amparo)** — the constitutional-protection suit against the authority's act, filed with a federal district judge, seeking a **suspensión** and, ultimately, the annulment of the authorization; it can rise to the collegiate courts and the **Supreme Court (SCJN)**. - **The administrative challenge** — the administrative appeal (**recurso de revisión**) and the suit before the **Federal Court of Administrative Justice (TFJA)** against the authorization. - **The collective action (acción colectiva)** and the **Federal Environmental Liability Law** claim — for collective environmental interests and for **environmental damage (daño ambiental)** and its reparation.

Be realistic about two things. First, an amparo's protection traditionally benefits **the plaintiffs** (its "relative effect"), so bring it in the name of the affected community and, where possible, as a collective matter, and pair it with the political and media steps. Second, a defect that is later **cured** can let a project resume, and the developer may keep litigating — as at **Homún**, where the company has repeatedly tried to overturn the suspension. So an early win may need defending: keep opposition and media pressure alive alongside the case.

Legal Strategy Decision Tree

```
START: Is a MIA in review, or an environmental-impact authorization issued?
├── IN REVIEW → Request the public consultation + object NOW (Track 1). Use the
│               transparency system. Record the community position / insist on consulta.
├── ISSUED    → Note the SHORT amparo deadline (generally 15 working days once you know).
│               Get current advice on what a court can suspend (post-2024 reform).

Q1: What is the defect?
├── Missing/defective prior consultation (Indigenous people) → AMPARO (strong ground).
├── Misleading MIA / missing required study / threat to water or a protected area
│   └── → AMPARO seeking a SUSPENSION.
├── A violation to enforce → DENUNCIA POPULAR to PROFEPA; and/or the administrative
│   suit before the TFJA.
├── Environmental damage has occurred → COLLECTIVE ACTION / Environmental Liability claim.
└── No real defect (lawful process, you just disagree) → focus on opposition + media.

Q2: Are works imminent?
├── YES → Seek a SUSPENSION in the amparo to halt works — and plan for a possible
│       resumption if a curable defect is fixed.

Q3: Budget?
├── MX$0          → Amparo with CEMDA / a legal clinic; broad interés legítimo standing.
├── MX$0-300k     → Amparo + a suspension + expert evidence with an environmental lawyer.
└── MX$300-600k  → Full case + expert witnesses, combined with opposition + media.

RECOMMENDED PATHS
Path A — Clear defect: amparo + suspension + Track 1 record + information file + media.
Highest ceiling.
Path B — Arguable but not clear-cut: build opposition + media; take advice; litigate if a
defect crystallises.
Path C — No legal defect: don't litigate. Win it politically, on the record, and in the press.
```

Litigation Success Factors

Litigation succeeds when **combined** with the other steps: - Litigation alone: 20-30% - Litigation + opposition: 35-45% - Litigation + opposition + media: 50-70% - A clear defect — a missing **prior consultation**, a misleading **MIA**, or a threat to a water system — can exceed these (as at Homún), though a cured defect may let the project resume.

A court that sees a genuine legal defect, plus visible organised opposition, plus press coverage, treats the matter as serious.

What to Avoid: Legal Failures

- **Litigating instead of organising.** A lone technical point with no visible opposition reads as a niche dispute. Build

opposition; litigate with it visible.

- **Missing the amparo deadline.** It is short (generally 15 working days once you know of the act) — move fast, and seek the suspension at the same time.
- **Not seeking the suspension.** Without it, the project may be finished before the case ends.
- **Weak grounds.** "This project is harmful" is an opinion, not a legal ground. "The authorization was granted without the prior consultation the Constitution requires" is a ground a court can act on.

TURNING YOUR EVIDENCE INTO ARGUMENTS

Evidence only counts when it is aimed at a specific legal ground. Here is how the records you gathered map onto the arguments that most often succeed in Mexico — so you file the right fact against the right rule.

A defective public consultation → challenge. Where the consulta pública was skipped or deficient. Feed it with: the consultation record and its gaps.

An amparo → suspend and review the authorization. The amparo protects the constitutional right to a healthy environment and can suspend a project. Feed it with: the rights violation and your documented harm.

An inadequate MIA → nullity. Ignored effects, no alternatives, weak assessment. Feed it with: the MIA gaps and your expert critique.

Indigenous or ejido consultation (ILO 169) skipped → strong ground. Feed it with: the affected community/ejido position and the absence of free, prior, informed consultation.

Authorization conditions breached → enforcement. Feed it with: the conditions and dated evidence of breach, to PROFEPA.

The pattern: match one clean, documented defect to one clear ground, and lead with the procedural ones — they can undo an approval without your having to win the argument about whether the project is "good." An environmental NGO can tell you fast whether an amparo or an administrative challenge is the right route.

STEP 5: MEDIA STRATEGY — HOW PRESS COVERAGE SHIFTS OUTCOMES

Time to complete: the full 12-month campaign **Cost:** ~MX\$150,000 (MXN) for trained spokespeople + ongoing support
Outcome: regular coverage reaching a large audience, political pressure on decision-makers

Success Rate (Media Only): 10-15% **Success Rate (Media + Opposition + Documentation + Legal):** 60-75%

Mexico has a strong national press, a vigorous investigative-journalism and environmental-journalism sector, and very heavy social-media use, that cover exactly these fights — and a record of that coverage shifting outcomes. The Homún case drew national and international attention, which raised the political cost of the farm.

How Journalists Actually Work

What reporters care about, in order: (1) **news** (something new happened), (2) **consequence** (someone is affected), (3) **timeliness** (it's happening now), (4) **conflict** (a real dispute), (5) **new information**. What they don't care about: your opinion, how angry you are, vague statements, or meetings with no hook.

The Newsworthiness Formula

NEWS = DATA + CONSEQUENCE + TIMELINESS + NEW INFORMATION - **Bad:** "Residents oppose the project." (no data, no specific consequence, nothing new) → ignored. - **Good:** "Information-law documents show the MIA never assessed the cenotes 300 families drink from; six children have filed an amparo; a judge decides on the suspension next week." → covered.

The difference is roughly a 4-5x change in the likelihood of coverage.

Know the Outlets That Cover This Beat

- **Local and community media** and **regional press** — the audience that reaches your municipal and state officials.
- **National outlets** — *La Jornada*, *Proceso*, *El Universal*, *Reforma*, and *Aristegui Noticias* — for projects with wider significance.
- **Investigative and environmental outlets** — *Animal Político*, *Pie de Página*, and **Mongabay Latam** — for deeper reporting on authorizations, water, and Indigenous rights.
- **Social media** — powerful in Mexico — plus international outlets for landmark cases (as at Homún).

Building Reporter Relationships (The Key)

Reporters don't ring campaigners for comment; campaigners ring reporters with tips. Identify 5-10 local, regional, and specialist reporters (environment, water, Indigenous-rights beats). **Contact** them first: "I saw your piece on [similar story]. We've got a similar situation in [place] and I think your readers should know." Then keep the relationship warm over months — a relevant article, an information-law document, a milestone — so that when the big story lands, they already know you.

Sample Media Timeline

- Month 1: build relationships (contact five reporters)
- Month 2: first story (public-consultation objections / recorded community position)
- Month 3: press event releasing the survey/information findings; expert available
- Month 4: coalition announcement
- Month 5: march coverage
- Month 6: decision-date coverage

Real Media Dynamics (Mexican grounding)

- **Coverage plus mobilisation shifts outcomes:** the Homún fight combined community organising, the documentation of the cenote threat, and the children's amparo with national and international coverage that raised the political cost.
- **Information-law documents make stories:** a disclosure that contradicts the developer's claims — a MIA that ignored the water system, a missing consultation — is a gift to a reporter and a court.
- **Independent evidence beats the developer's study:** independent hydrological, ecological, or health analysis that contradicts an optimistic **MIA** lets the press write "experts dispute the developer's figures," and decision-makers take notice.

Media Measurement

Track cumulative stories and reach month over month. **Success indicators:** regular (at least monthly) coverage that carries your message and specific data, and visible decision-maker response. **Failure indicators:** no coverage for 2+ months, superficial coverage that drops your argument, or no response from decision-makers.

SECTION 8: EMAILS & LETTERS YOU CAN COPY

These are ready-to-use messages. Adapt the bracketed parts and send them. Keep them short, specific, and grounded in the law and the evidence — that is what gets read and acted on. The **public-information request (8E)** and the press release (8G) are among the highest-leverage messages here.

8A. Email to a reporter (story pitch)

Subject: Story tip: [specific finding] – [the authority] decides [date]

Dear [Reporter],

I follow your coverage of [beat / recent story]. We have something in [place] your readers should know about, and there's a clear news hook.

In one line: [information-law documents / the community's recorded position / an independent survey] show [quantified finding – e.g. "the MIA never assessed the cenotes 300 families drink from"], and [SEMARNAT / the state authority] decides on [date].

Why it's newsworthy: it's new (just obtained), specific (affects [# people / hectares / an Indigenous community]), and time-sensitive (decision [date]).

I can share the full report and the documents and connect you with [one named expert] for an interview. Would a quick call this week work?

Regards,

[Name] – [Organisation] – [phone] – [email]

8B. Letter to SEMARNAT, the state authority, or the governor/municipio

Subject: [Deny / attach strict conditions to] [project] – environmental-impact authorization [ref]

To [SEMARNAT / the Head of the State Environment Authority / the Governor / the Municipal President],

I am a resident of [place] writing about the [project], on which a decision (the environmental-impact authorization based on the MIA) is expected around [date].

The concern, briefly: [one or two specific grounds – e.g. "the MIA fails to assess the cenotes the town depends on, and the Indigenous community was never consulted"].

I am asking you to [specific, achievable action – e.g. "deny the authorization," or "require strict conditions, real remediation, and a redesign"].

[If true:] The affected community has formally recorded its objection; [#] residents filed objections in the public consultation; [#] organisations share the concern.

I would welcome a meeting and can share our full evidence.

Respectfully,

[Name], [address], [phone], [email]

8C. Objection in the public consultation / recorded community position

PART A – WRITTEN OBJECTION (public consultation on the MIA)

To: [SEMARNAT / the state environment authority], re [project]

Objection to the [project]. Consultation requested/held [date].

1. Who I am: [name], [community], [interest].

2. Grounds (with evidence):

- a. [Indigenous consultation] – the project affects the [people]; the prior consultation the Constitution and ILO 169 require has not taken place. (Attach.)
- b. [Misleading MIA] – the study omits [impact], understates [impact], and [ignores] the water system / protected area documented here.
- c. [Defective process] – the consultation was not made genuinely available / not held in [language] / objections were not addressed.

3. What I ask: that the authorization be DENIED; alternatively, [strict conditions and a redesign].

[Name] – [contact] – Attachments: [baseline / impact / health report]

PART B – RECORDED COMMUNITY POSITION (assembly / Indigenous people)

"The [community], through its assembly / its own decision-making, records that it OBJECTS to the [project] and does not consent to it, for the following reasons: [rights / livelihood / water / sacred sites]. Recorded [date], [who was present / how decided]."

8D. Coalition outreach email (to an organisation)

Subject: [Organisation] + [project] – a specific ask that fits your work

Dear [Name],

I'm [name] with [organisation] in [place]. We're working on [project], which [one-line stake]. I'm getting in touch because this connects directly to [organisation]'s work on [their aim].

We're not asking you to adopt our whole campaign – just one concrete thing that serves your aims: [tailored ask – e.g. "help us prepare an amparo and a request for a suspension," or "help us insist on a genuine prior consultation," or "have your researchers assess the aquifer impacts independently"].

If helpful, I can send a one-page brief and arrange a short call.

Thanks for considering it,
[Name] – [Organisation] – [contact]

8E. Public-information request (the transparency tool)

NOTE: Requests go through the National Transparency Platform (Plataforma Nacional de Transparencia). In 2025 the autonomous institute (INAI) was replaced; the guarantor role now sits with the federal transparency authority – but the RIGHT to request public information continues, and the platform still operates.

To: The Transparency Unit of [SEMARNAT / the state environment authority / the municipio]

Request for public information

Please provide the following concerning [project] (ref [ref]):

1. The environmental-impact statement (MIA) and the environmental-impact authorization (and any conditions).
2. The record of the public consultation / public meeting and the objections received.
3. For forest land: the land-use-change (cambio de uso de suelo) authorization; for water: the CONAGUA concession.
4. Any prior-consultation record for the affected Indigenous people.
5. The correspondence between [the authority] and [the developer], [dates].

If any information is withheld, please state the legal basis; I reserve the right to seek review before the transparency authority.

[Name] – [address] – [date]

8F. Legal challenge — amparo / suspension (act fast; get current advice)

NOTE: An amparo has a SHORT deadline (generally 15 working days once you learn of the act). SEEK THE SUSPENSION at the same time. A 2024 judicial reform changed what courts can suspend – CONFIRM THE CURRENT POSITION with an environmental lawyer or a clinic (e.g. CEMDA) FIRST. Standing is broad (interés legítimo – you need not prove the environmental damage to sue).

[AMPARO PETITION – heading and form as advised by counsel]
[Date]

Complainant(s): [affected persons / community / registered association – interés legítimo], [address].

Responsible authority: [SEMARNAT / the state authority] and its act: [the environmental-impact authorization [ref], dated [date]].

1. The right violated: the right to a healthy environment (Art. 4); [and the right to prior consultation of the Indigenous people (Art. 2 / ILO 169)].
2. Grounds:
 - Ground 1 – [missing/defective prior consultation].
 - Ground 2 – [misleading MIA / missing required study].
 - Ground 3 – [threat to the water system / protected area; precautionary principle; non-regression].
3. SUSPENSION requested to halt works while the case is decided.

[Name / counsel] – [contact]

8G. Press release (effective)

FOR IMMEDIATE RELEASE

[HEADLINE: make it NEWS, not opinion]
[Subtitle: consequence + timeliness]

[DATELINE: Place / Date]

[LEAD – answer "why now?"]
[Local organisation] released [study / information-law documents / the community's recorded position] today showing [specific finding] affecting [# of people / hectares / an Indigenous community].

KEY FINDINGS

- [Quantified impact with citation]
- [Quantified impact with citation]
- [Quantified impact with citation]

[DIRECT QUOTE – specific, from a credible voice, not a slogan]
"[What the finding means]," said [Name, Title].

[CONTEXT – why it matters; reference a documented case where relevant]

[DECISION POINT – create urgency]
[SEMARNAT / the state authority / the court] decides on [date].

[CALL TO ACTION] To support or file an objection: [how].
For more: [contact].

CONTACT: [Name / Organisation / Phone / Email]

ATTACHMENTS: full report, information-law documents, the community's recorded position, maps, Q&A

8H. Legal strategy decision tree

See Step 4 for the full decision tree — Tracks 1-3, the amparo, the suspension, interés legítimo, prior consultation, the denuncia popular to PROFEPA, the current-position caution after the 2024 reform, and the budget branches.

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

Not everyone can run a year-long campaign. With an afternoon a week you can still do real damage to a bad project. In rough order of impact for the effort:

1. **Take part in the consulta pública and submit written objections before the deadline. Name one or two concrete grounds (water, an ejido, a protected area). It enters the record.**
2. **Get the Manifestación de Impacto Ambiental (MIA) and quote its worst admission back to the autoridad ambiental.** The developer's own words carry the most weight.
3. **Send one accurate email to a local reporter** (Section 8A). A single story raises the political cost and can reach a lawyer or expert.
4. **File one transparency request** (Section 8E) — even if someone else uses it later.
5. **Point one environmental NGO at the fight.** An environmental NGO such as CEMDA may take it from there — you hand off, you don't have to lead.
6. **Where indigenous or ejido land is affected, ensure the community knows the timeline** — the consultation right (and an amparo) is a strong, distinct lever.
7. **Tell your neighbours the deadline.** Ten individual submissions beat your one.

Do only the first three and you've preserved the record, put the project in the press, and left a trail others can pick up.

SECTION 9: WHEN THE SYSTEM IS TILTED TOWARD APPROVAL (HONEST MECHANICS)

What this means. A system is **tilted toward approval** when the bodies that decide on a project lean, in practice, toward approving it — because the government is pushing investment and infrastructure, because the developer's own consultant writes the impact study, or because authorizations are rarely refused. It rarely means anyone broke the law. Here is how the tilt works — and how communities win anyway.

Important Caveat

This section describes patterns from documented Mexican dynamics and public policy — "priority project" backing, developer-funded **MIA** studies, rarely-refused authorizations, and projects that begin before approval. It is not a statistical claim about "X% of all decisions." Read it as: "where these patterns appear, here is what happens and what it means for opposition."

What This Tilt DOES (and DOESN'T DO)

DOES: create financial and political incentive to approve (jobs, revenue, investment, **priority-project** status); bias information (the **MIA** is commissioned by the developer, and reads optimistically); advantage well-resourced developers; and — after the 2024 judicial reform — narrow the courts' power to grant broad **suspensions**. **DOESN'T:** guarantee approval; make opposition impossible; remove the right to **prior consultation**; remove the **amparo**, the **interés legítimo** doctrine, or the **precautionary** and **non-regression** principles; or prevent annulments, conditions, and delay.

The 2024 judicial reform, specifically. A 2024 constitutional reform reshaped the judiciary and limited courts' power to suspend general norms, and a 2025 proposal sought to narrow the standing of environmental NGOs. The practical lesson: the **amparo** remains the central tool, and **interés legítimo** standing and the **prior-consultation** ground remain strong — but what a court can **suspend** has shifted, so get **current advice** and lead with the cleanest, most concrete ground (a missing consultation, a defective MIA, a threat to a specific water system).

Analogy: a tilted system is like playing on a pitch sloped against you. It makes winning harder, not impossible — so your strategy has to be sharper and more visible, your legal grounds cleaner, and your information paper trail solid.

Assessment Framework — Determine Your Situation

GREEN FLAG (low tilt): an ordinary authorization with genuine scrutiny; no "priority project" label; a clear legal defect; Indigenous territory or a documented water system engaged. → 65-75% with all 5 steps. Proceed with standard opposition.

YELLOW FLAG (moderate tilt): strong pro-investment push and a developer-funded **MIA**, but independent evidence is possible and a legal ground (MIA, consultation, water) is arguable. → 40-45% with all 5 steps; often win conditions and delay even if not a refusal. Proceed; prioritise the consultation and MIA defects.

RED FLAG (high tilt): a federal **priority project**, developer-only studies, heavy political backing, and works already begun. → 25-30% to stop; 50-60% to modify/delay. Decide whether delay/conditions justify the investment; lead with the cleanest ground; build power and a record for the next round.

Direct Action and Defender Safety: Factual Information (Descriptive, Not Prescriptive)

When authorization and legal routes are exhausted, some Mexican communities have used non-violent direct action — marches, sit-ins (*plantones*), and blockades. This is descriptive of what has occurred, not guidance, and in Mexico it comes with a grave safety warning.

Mexico is one of the most dangerous countries in the world for environmental and land defenders — and for journalists. International monitoring has repeatedly ranked it among the deadliest countries for people who defend land and the environment, with a high rate of killings and near-total **impunity**. The murder of **Samir Flores Soberanes** — a Náhuatl community-radio founder and land-and-water defender from Amilcingo, Morelos, shot dead outside his home on 20 February 2019, three days before a government consultation on a project he opposed, after years of threats — is a documented and infamous example; his killing remains unpunished. Defenders and journalists reporting on these conflicts face threats, attacks, criminalisation, and murder.

Anyone considering direct action — or even visible organising in a high-conflict area, especially over energy, mining, water, or megaprojects — should take the physical and legal risk with the utmost seriousness: don't act alone; keep actions non-violent, lawful, and well-documented; line up **legal support** in advance; keep decisions transparent and collective so a developer or armed interests cannot co-opt or split the community; and stay connected to human-rights bodies — the **National Human Rights Commission (CNDH)**, the federal **Mechanism for the Protection of Human Rights Defenders and Journalists**, and organisations such as **CEMDA** — and to the press, because visibility is a measure of protection. If you or your organisers are threatened, treat it as an emergency: report it, document it, seek protection through the Mechanism, and tell your networks. Direct action has produced delay and attention in documented cases, but on its own rarely stops a project permanently; combined with documentation, consultation, the **amparo**, and media, it is more consequential — and safer.

Honest Assessment

Where the system is tilted, opposition using authorization and legal methods has lower odds of an outright stop — but still reliably wins annulments or conditions, forces delay (often long), imposes political cost, builds durable community power, and creates a record for the courts. And Mexico offers genuine equalisers: the **amparo** and its **suspension**; broad **interés legítimo** standing (no need to prove the damage first); the **precautionary** and **non-regression** principles; the right to **prior consultation**; and the transparency system. Neither scenario makes opposition futile.

WHEN IT'S ACTUAL CORRUPTION — AND WHO IS CAPTURED

Most bad decisions are lawful decisions you disagree with. But capture is real, and it looks different in each institution. Read your situation actor by actor — the type of capture changes which lever works, and sometimes tells you a lever is closed. Handle this carefully: the same facts that can sink a project can expose you to a defamation suit if you get them wrong.

Municipio officials and councillors. The most common pressure point: a municipio dependent on the project, or an official with a developer tie. Signs: a sudden reclassification or rezoning, a rushed vote, a report that ignores its own evidence. Lever: the administrative-responsibility law and conflict-of-interest rules — misconduct can void acts and sanction officials.

SEMARNAT, the state authority, and PROFEPA. Capture here is usually softer — political direction to approve, or reliance on the developer's own consultants. Signs: an assessment that reads as the developer's document. Lever: an amparo or an administrative nullity challenge.

The developers. Watch for land assembled quietly before a project is public, shell companies, and revolving-door hires of former officials or regulators. the commercial and property registries and asset declarations surface the timeline a journalist needs.

The courts. Mexico's amparo and its constitutional environmental right are strong levers, and courts have suspended major projects. The constraints are delay and, in places, uneven enforcement; seek the suspensión where work could start before judgment.

Federal and state politicians and priority projects. Where a project is a stated federal or state priority, expect the whole chain to lean toward yes. That is not corruption, but capture of a kind; the honest path is procedural rigour plus public pressure.

How to act on it, safely. Document from public sources before you speak. Route serious allegations through lawyers and the proper bodies — the Fiscalía (for crimes), the Auditoría Superior for public money, and the internal-control organs (órganos internos de control) — not social media. A reckless public accusation can expose you to defamation liability and hand the developer a way to change the subject.

INTEGRATION: HOW ALL FIVE STEPS WORK TOGETHER

Realistic 12-Month Campaign Timeline

Months 1-2 — Foundation + Documentation: identify the target and decision-maker (Step 1); begin baseline surveys, map Indigenous territory, water systems, and use (Step 2); convene the community assembly and form or partner with a registered association (Step 3); file first **information requests**, request the **public consultation**, and make first reporter contacts (Steps 4-5). *Outcome:* structure forming, the record and paper trail beginning.

Months 2-3 — Public Launch: baseline complete; community assembly + objections in the public consultation + **recorded community position** (Steps 3-4); media event (Step 5). *Outcome:* opposition visible, objections and position on the record, 3-5 stories.

Months 3-4 — Coalition + Impact Analysis: complete impact analysis testing the **MIA** (Step 2); expand the coalition and bring in a law group/clinic and (on Indigenous land) an Indigenous organisation (Step 3); prepare the **amparo** grounds — with current advice on the suspension (Step 4); data-release press event (Step 5). *Outcome:* broad coalition, legal grounds identified, coverage expanding.

Months 4-6 — Expansion + Health Data: health/livelihood report (Step 2); sustained marches (Step 3); the

authorization decision (Step 4); expert press events (Step 5). *Outcome*: possible refusal or strict conditions, quantified impacts, regional media.

Months 6-9 — Escalation + Amparo: marches escalating (Step 3); file the **amparo** and seek the **suspension** (Step 4); ongoing monthly media (Step 5). *Outcome*: sustained pressure, case live, works possibly halted.

Months 9-12 — Peak Pressure + Positioning: maintain opposition (Step 3); hearings / positioning, and watch for a **re-granted authorization** after any suspension (Step 4); media momentum (Step 5). *Outcome*: authorization + opposition + media + law compound; annulment, conditions, or the project shelved.

Key Principles (What Separates Winning Campaigns from Losing Ones)

1. **Specificity** — "the MIA never assessed the cenotes the town depends on," not "we oppose the project."
2. **Multi-tactic pressure** — objections + recorded position + consultation + opposition + media + amparo, together.
3. **Long-term organising** — sustain 12+ months; prevent burnout; keep people safe.
4. **Documentation first** — build the evidence (including who lives there and the water systems), then object and litigate on it.
5. **Coalition building** — 5-10 diverse groups; respect Indigenous communities' and *ejidos*' own processes and guard against co-option.
6. **Use the amparo, interés legítimo, and prior consultation** — the constitutional suit, broad standing, and the consultation right are distinctively strong Mexican levers.
7. **Act fast and seek the suspension** — the amparo deadline is short; get current advice post-2024 reform.
8. **Realistic expectations** — expect conditions/modifications/delay; a refusal or annulment is the bonus; expect works-ahead-of-permits and possible re-granting.
9. **Persistence and safety** — plan for 12-24 months, keep momentum, and protect organisers and whistleblowers — the danger here is real.

Warning Signs — Act Early

Watch for these and respond fast: attendance declining around months 4-5 (burnout); coalition members leaving or being co-opted; no media coverage for 2-3 months; the case stalling or an authorization re-granted after a suspension; fundraising below half your target by month 6; a core organiser leaving without a successor; **threats, criminalisation, or intimidation** against organisers (treat as a safety emergency — see Section 9); or someone new pushing illegal or reckless tactics. Each has a fix earlier in this guide — catch it early and the campaign holds.

FINAL ASSESSMENT: OUTCOMES & WHEN TO REASSESS

Real Outcomes: What Winning Looks Like

- **Authorization refused / project shelved** (rarer): usually needs overwhelming opposition + a strong MIA or consultation case + heavy media + lower tilt. Homún (the farm halted for years by a suspension) shows it happens — and also shows a win can be re-fought.
- **Authorization modified** (most common victory): strict conditions, genuine remediation and relocation, buffers, independent monitoring, redesign — often via the authority or a court.
- **Delay / attrition**: halted for years while the amparo runs; costs mount and financiers lose confidence; the developer sometimes walks away.
- **Defeat**: the project proceeds (sometimes after a re-granted authorization or a cured defect). Focus then shifts to enforcing conditions and remediation, monitoring compliance, and the next opening.

Decision Point: Continue, Modify, or Reassess

Continue if the legal grounds are live, the consultation and information record is strong, opposition is holding or growing, media is at least monthly, the coalition is stable, and organisers are safe. **Modify** if attendance is falling, coverage has dropped for 2+ months, coalition members are leaving, the legal position has weakened, or you discover the system is more tilted than assessed. **Reassess** if, after ~12 months (and perhaps an amparo) authorization and legal options are exhausted, the decision looks settled despite real effort, the community is exhausted, or resources are gone — or if the personal or legal risk to organisers has become unacceptable. Ask: has opposition already won partial victory (conditions, remediation, delay)? Would more effort win more, or just prolong the fight? Should energy shift to enforcing conditions, to the next project, or to changing the policy?

The Bottom Line

Opposition work can stop or significantly modify destructive projects in Mexico — even where investment, resource revenue, and "priority project" politics point toward approval. Opposition creates multiple, compounding forms of pressure: on the record, politically, in the press, and in the courts. Where the system is tilted, an outright stop is less likely, but opposition still delivers annulments, conditions, remediation, delay, and durable power.

And Mexico offers genuine equalisers: the **amparo** and its **suspensión**, which can halt a project while a court decides — as at **Homún**; broad **interés legítimo** standing, so a community can sue without first proving the damage; the **precautionary** and **non-regression** principles; the right of **Indigenous peoples to prior consultation**; and the transparency system that prises the file open. When a project truly cannot lawfully proceed, a court can halt or annul it — remembering that such a win must then be defended.

Know your situation. Assess how tilted the system is, honestly, and get current advice on what a court can suspend today. Watch for genuine corruption and refer it to the integrity bodies. Keep organisers and whistleblowers safe — the danger here is real. Choose your strategy accordingly. Then organise — with eyes open to both the possibilities and the barriers.
